



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

AUG 20 1991

DOT-E 10493
(FIRST REVISION)

1. Korean Air Lines Company Limited, Los Angeles, California, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to transport packages prescribed herein of certain Class A explosives for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of explosives which are forbidden for transportation by air, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Korean Air Lines Company Limited's application dated September 18 and October 2, 1990, and supplemental letter dated August 12, 1991 submitted in accordance with 49 CFR 107.113 and supporting letter from the Department of Defense (Department of the Army) dated September 20, 1990 and August 13, 1991. The granting of the exemption is in the national interest based on a statement by the U.S. Department of Defense (DOD).

3. HAZARDOUS MATERIALS (Descriptor and class). Rocket ammunition with explosive projectile (EX-8709588); Booster, explosive (EX-8806717), classed as Class A explosives.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 172.101 table, column (6)(b); 175.30.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging, marking, labeling and loading are as prescribed for the specific material in accordance with the requirements of 49 CFR.

8. SPECIAL PROVISIONS.

a. The carrier must conform to the requirements of 49 CFR 175.320(b).

b. A copy of this exemption must be carried aboard the aircraft used to transport packages covered by this exemption.

c. No other cargo is authorized aboard the aircraft, except for certain nonhazardous Rocket Launchers.

d. Shipment is to originate at Travis Air Force Base, California with a stop for refueling at Elmendorf AFB, Alaska destined for Pusan, Korea.

e. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

f. Flight plan. The operator of the aircraft shall include the following information in the "Remarks" section of each flight plan when the provisions of this exemption are exercised:

1. The classification of each explosives aboard the aircraft, and
2. The net weight of each class of explosives aboard the aircraft.

g. The explosives must be loaded aboard the aircraft in accordance with the procedures established by the Department of Defense.

h. Upon completion of the shipment made under this exemption, a copy of the air bill must be forwarded to the Associate Administrator for Hazardous Materials Safety, Exemptions Program within 10 days.

9. REPORTING REQUIREMENTS. Any incident involving fire, explosion, or loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 1, 1991, or upon completion of one shipment, whichever occurs earlier.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety
Continuation of DOT-E 10493

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(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.